

5-6. 25CV02589 Smith, Gary v. Halimi, David et al.

EVENT: (1) Motion to be Relieved as Counsel for David Halimi

(2) Motion to be Relieved as Counsel for Defendant DH Eats, Inc.

The Court is in receipt of the declaration of counsel in support of the motion to be relieved. However, Judicial Council form MC-052 is required, as it is a mandatory form. The hearing is continued to September 30, 2026 at 9:00am for counsel to file and serve MC-052. Counsel shall give notice of the continued hearing.

7. 25CV03377 Li, Yi v. Crew Enterprises, LLC et al.

EVENT: Defendants Crew Enterprises, LLC and Book and Ladder LLC's Demurrer to Plaintiff's Third Amended Complaint

Preliminarily, the Court is not considering Plaintiff's brief in response to Defendants' reply brief. The Court did not provide Plaintiff authorization to file the brief. A trial court has broad discretion under rule 3.1300(d) of the California Rules of Court to refuse to consider papers served and filed beyond the deadline without a prior court order finding good cause for late submission. (*Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765)

Statute of Limitations

Defamation

The demurrer is sustained without leave to amend.

The limitations period for defamation is one year. (CCP 340(c)) Although the operative pleading is somewhat ambiguous as to when the alleged acts occurred, Plaintiff's opposition clarified that the events "culminated" from Plaintiff's departure "on or about September 23, 2023". Per this statement, none of the events occurred later than September 26, 2023. That statement renders his defamation claim untimely as the one-year period expired in September 2024.

Intentional Infliction of Emotional Distress (IIED)

The demurrer is sustained without leave to amend.